

by Fox's complaint read as a whole. In addition to seeking a declaratory judgment, the court said, Fox's complaint can be read as making out a valid plea for injunctive relief, thus stating a claim traditionally cognizable in equity. A party who is entitled to maintain a suit in equity for an injunction, said the court, may have all the issues in his suit determined by the judge without a jury regardless of whether legal rights are involved. The court then rejected the argument that equitable relief, traditionally available only when legal remedies are inadequate, was rendered unnecessary in this case by the filing of the counterclaim and cross-claim which presented all the issues necessary to a determination of the right to injunctive relief. Relying on *American Life Ins. Co. v. Stewart*, 300 U. S. 203, 215, decided before the enactment of the Federal Rules of Civil Procedure, it invoked the principle that a court sitting in equity could retain jurisdiction even though later a legal remedy became available. In such instances the equity court had discretion to enjoin the later lawsuit in order to allow the whole dispute to be determined in one case in one court.⁵ Reasoning by analogy, the Court of Appeals held it was not an abuse of discretion for the district judge, acting under Federal Rule of Civil Procedure 42 (b), to try the equitable cause first even though this might, through collateral estoppel, prevent a full jury trial of the counterclaim and cross-claim which were as effectively stopped as by an equity injunction.⁶

⁵ Compare *Enelow v. New York Life Ins. Co.*, 293 U. S. 379, with *American Life Ins. Co. v. Stewart*, 300 U. S. 203. See also *City of Morgantown v. Royal Ins. Co.*, 337 U. S. 254; *Peake v. Lincoln Nat. Life Ins. Co.*, 15 F. 2d 303.

⁶ 252 F. 2d, at 874. In *Ettelson v. Metropolitan Life Ins. Co.*, 317 U. S. 188, 192, this Court recognized that orders enabling equitable causes to be tried before legal ones had the same effect as injunctions. In *City of Morgantown v. Royal Ins. Co.*, 337 U. S. 254, the Court denied at least some such orders the status of injunctions for the pur-